

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
CALVIN K. MORELAND,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK
POLICE DEPARTMENT, POLICE OFFICER
SALASMARTINEZ and POLICE OFFICER BARCIA,

Defendants.
-----X

Index #:

Filed on:

SUMMONS

PLAINTIFF DESIGNATES
BRONX COUNTY
AS THE PLACE OF TRIAL

THE BASIS OF VENUE IS
LOCATION OF OCCURRENCE

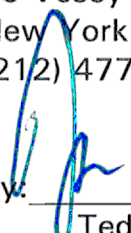
Location of Occurrence
Popham Avenue
Bronx, New York 10453

TO THE ABOVE NAMED DEFENDANT(S):

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days of the service of this summons, exclusive of the day of service (or within 30 days after the service of this summons, exclusive of the day of service if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 26, 2019

Yours, etc.,
THE LAW OFFICE OF TEDD KESSLER, P.C.
Attorneys for the Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 477-3200

By: 

Tedd Kessler, Esq.

Defendants' Addresses:

THE CITY OF NEW YORK
100 Church Avenue
New York, New York 10007

THE NEW YORK POLICE DEPARTMENT
100 Church Avenue
New York, New York 10007

POLICE OFFICER SALASMARTINEZ
Tax # 957123
46th Precinct
2120 Ryer Avenue
Bronx, NY 10457

POLICE OFFICER BARCIA
Tax # 961635
46th Precinct
2120 Ryer Avenue
Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
CALVIN K. MORELAND,

Plaintiff,

INDEX #:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK
POLICE DEPARTMENT, POLICE OFFICER
SALASMARTINEZ and POLICE OFFICER BARCIA,

Defendants.

-----X
Plaintiff by and through his attorneys, **THE LAW OFFICE OF TEDD KESSLER, P.C.**, as and for his Verified Complaint, at all times hereinafter mentioned, alleges, upon information and belief:

THE PARTIES

1. Plaintiff is and was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and now is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. At all times herein mentioned, THE NEW YORK POLICE DEPARTMENT, was and is an agency of defendant, THE CITY OF NEW YORK.
4. At all times herein mentioned, THE NEW YORK POLICE DEPARTMENT of the City of New York acted through its agents, servants and/or employees including, but

not limited to, defendants, POLICE OFFICER SALASMARTINEZ, and POLICE OFFICER BARCIA.

5. At all times herein mentioned, defendant, POLICE OFFICER SALASMARTINEZ, was employed by THE NEW YORK POLICE DEPARTMENT as a police officer.

6. At all times herein mentioned, defendant, POLICE OFFICER SALASMARTINEZ, acted with the authority given to him by THE NEW YORK POLICE DEPARTMENT and the City of New York.

7. At all times herein mentioned, defendant, POLICE OFFICER SALASMARTINEZ, acted under color of law.

8. At all times herein mentioned, defendant, POLICE OFFICER BARCIA, was employed by THE NEW YORK POLICE DEPARTMENT as a police officer.

9. At all times herein mentioned, defendant, POLICE OFFICER BARCIA, acted with the authority given to him by THE NEW YORK POLICE DEPARTMENT and the City of New York.

10. At all times herein mentioned, defendant, POLICE OFFICER BARCIA, acted under color of law.

11. That at all times herein mentioned, the defendant, THE CITY OF NEW YORK, by and through THE NEW YORK POLICE DEPARTMENT had trained POLICE OFFICER SALASMARTINEZ and POLICE OFFICER BARCIA.

12. That at all times herein mentioned the actions of POLICE OFFICER SALASMARTINEZ and POLICE OFFICER BARCIA complained of herein were taken as part of the custom, practice, usage, regulation and/or direction of the City of New York.

13. On May 15, 2018, defendants, POLICE OFFICER SALASMARTINEZ and POLICE OFFICER BARCIA were acting under the color of their official capacity and their acts were performed under the color of the statutes, ordinances, laws and the Constitutions of the United States of America, the State of New York and the Charter of the City of New York. The defendant police were the servants, agents and employees of their co-defendant, the City of New York. Notwithstanding the wrongful and illegal nature of the individual defendant's acts and conduct as hereinafter described, the conduct the defendants engaged in, during the course of their duties and functions as New York City Police, were part and parcel and incidental to the otherwise lawful performance of their duties.

14. This action is commenced within one (1) year and ninety (90) days from the date plaintiff's claim first arose.

15. That heretofore and on the 24th day of July, 2018, the plaintiff caused to be served upon THE CITY OF NEW YORK, THE NEW YORK POLICE DEPARTMENT, POLICE OFFICER SALASMARTINEZ, and POLICE OFFICER BARCIA, a claim for damages for personal injuries sustained by plaintiff as herein set forth, together with a demand for an adjustment of the same (attached hereto as Exhibit "A" is a copy of Notice of Claim), and a notice that if his claim for damages was not settled or adjusted within thirty (30) days, an action would be commenced against THE CITY OF NEW YORK, THE NEW

YORK POLICE DEPARTMENT, POLICE OFFICER SALASMARTINEZ, and POLICE OFFICER BARCIA, to recover the amount of the plaintiff's claim, and that more than thirty (30) days have elapsed since the service of the said notice of claim, and the defendant has neglected and refused to adjust, settle, or pay the same; that the said notice and claim were duly served upon the defendant within ninety (90) days after the occurrence of the said accident and the sustaining of the said injuries, and that this action was commenced within the statute of limitations.

16. That the plaintiff has duly complied with all statutory provisions and laws applicable to the defendants, and precedent to the making of this claim and the bringing of this action, and have duly and timely complied with all the conditions precedent to the claim and the bringing of this action, and that this claim has been presented, and that this action has been commenced within the period of time prescribed and provided by statute and law.

AS AND FOR A FIRST CAUSE OF ACTION

17. That at all times hereinafter mentioned, roadway Montgomery Avenue, Popham Avenue, and Palisades Avenue, Bronx, New York 10453 were and still are public thoroughfares.

18. That on May 15, 2018, plaintiff, CALVIN K. MORELAND, was lawfully and legally driving his motor vehicle on Montgomery Avenue towards Popham Avenue, Bronx, New York 10453.

19. That plaintiff, CALVIN K. MORELAND, while driving his motor vehicle on Montgomery Avenue, saw a police car behind him.

20. Said police car was operating its lights and siren.
21. Plaintiff stopped and waited to let the police car in which defendants, POLICE OFFICER SALASMARTINEZ, driver, and POLICE OFFICER BARCIA, passenger, were riding to pass him.
22. The police car did not pass plaintiff even though plaintiff waited to let them do so.
23. Plaintiff then turned onto Popham Avenue.
24. Plaintiff drove slowly and toward the side of the road, to let the police car pass him.
25. The police car followed plaintiff's motor vehicle but did not pass plaintiff even though plaintiff was allowing and gesturing for the police car to do so.
26. The police car continued to follow plaintiff.
27. Plaintiff stopped at Popham Avenue and Palisades Avenue, pulling over to the side of the road to let the police car pass him.
28. Yet again, the police car did not pass plaintiff.
29. Plaintiff then opened his window to gesture to the police that it was safe for them to pass his motor vehicle.
30. The police car then passed plaintiff's motor vehicle and pulled in front of plaintiff's vehicle at an angle in order to prevent plaintiff from driving further.
31. The police officers accused plaintiff of failing to yield to a police car which plaintiff denied.

32. Plaintiff attempted to use his cell phone. One of the police officers struck the plaintiff and knocked the phone out of plaintiff's hand.

33. One police officer then attempted to pull plaintiff out of his car but was unable to do so because the plaintiff's seat belt was on.

34. Police officer SALASMARTINEZ then pulled his Taser and discharged the weapon, striking plaintiff's torso.

35. Plaintiff was unable to move and asked the police officer to release his seat belt.

36. Plaintiff CALVIN K. MORELAND, was taken out of his car, forced to kneel in the street, handcuffed and placed under arrest and was in the custody of defendants.

37. Plaintiff was taken to the police precinct where he remained handcuffed and under arrest. He was placed in leg irons and remained in the custody of defendants.

38. That POLICE OFFICER SALASMARTINEZ and POLICE OFFICER BARCIA had no probable cause or reason to arrest or detain plaintiff.

39. The actions and conduct of defendants violated the plaintiff's rights as guaranteed under the laws of the United States Constitution and State of New York and the Charter of the City of New York, it being that plaintiff was restrained with the use of excessive force, falsely arrested, and imprisoned without just or probable cause or reason and without an arrest warrant.

40. As a direct and proximate result of the misconduct detailed above, the plaintiff was assaulted and battered and subjected to physical and psychological abuse and did suffer serious personal injuries to diverse parts of his body and limbs, causing

him to become sick, sore, lame and disabled for a long period of time and suffer personal injuries to his mind and body, requiring him to obtain medical treatment for said injuries and as such, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of all Courts lower than the Supreme Court of the State of New York.

41. Plaintiff demands judgment against the defendants in a sum exceeding the jurisdictional limits of all courts lower than the Supreme Court of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION

42. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "41" inclusive, with the same force and effect as though set forth fully at length herein.

43. That at all times hereinafter mentioned, plaintiff, CALVIN K. MORELAND, was physically falsely arrested and imprisoned by defendants, POLICE OFFICER SALASMARTINEZ and POLICE OFFICER BARCIA.

44. That plaintiff, CALVIN K. MORELAND, was physically taken into custody by defendants, THE CITY OF NEW YORK, THE NEW YORK POLICE DEPARTMENT, POLICE OFFICER SALASMARTINEZ and POLICE OFFICER BARCIA, and was handcuffed, placed under arrest, and put in a cell with leg irons.

45. As a direct and proximate result of the misconduct detailed above, the plaintiff was caused to be falsely arrested and imprisoned and did suffer serious personal injuries to diverse parts of his body and limbs, causing him to become sick, sore, lame and disabled for a long period of time and he did suffer personal injuries to his mind and body, requiring him to obtain medical treatment for said injuries and as

such, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of all Courts lower than the Supreme Court of the State of New York.

46. Plaintiff demands judgment against the defendants in a sum exceeding the jurisdictional limits of all courts lower than the Supreme Court of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION

47. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "46" inclusive, with the same force and effect as though set forth fully at length herein.

48. The within occurrences transpired due to the negligence, recklessness and carelessness of defendants in, *inter alia*, improperly and inadequately hiring personnel; improperly and inadequately training personnel; improperly and inadequately supervising personnel; in negligently hiring POLICE OFFICER SALASMARTINEZ and POLICE OFFICER BARCIA in negligently training POLICE OFFICER SALASMARTINEZ and POLICE OFFICER BARCIA; in failing to protect and safeguard the plaintiff; in inappropriately restraining plaintiff; in improperly and inappropriately restraining plaintiff knowing that he did not do anything illegal; in using force; in using excessive force; in abusing the plaintiff; in failing to take proper steps to safeguard the plaintiff; in failing to restrain POLICE OFFICER SALASMARTINEZ and POLICE OFFICER BARCIA; in failing to restrain POLICE OFFICER SALASMARTINEZ and POLICE OFFICER BARCIA after notice of their improper and inappropriate treatment of people situated in similar situations to plaintiff; in failing to discharge POLICE OFFICER SALASMARTINEZ, and POLICE OFFICER BARCIA from employment; in failing to take the proper steps to prevent the occurrences as herein set

forth; in failing to use reasonable care, caution, and prudence; in negligently supervising POLICE OFFICER SALASMARTINEZ, and POLICE OFFICER BARCIA; in failing to provide a safe and secure environment for plaintiff and the defendants were otherwise negligent, reckless, and careless.

49. As a direct and proximate result of the misconduct detailed above, the plaintiff was caused to and did suffer serious personal injuries to diverse parts of his body and limbs, causing his to become sick, sore, lame and disabled for a long period of time and he did suffer personal injuries to his mind and body, requiring his to obtain medical treatment for said injuries and as such, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of all Courts lower than the Supreme Court of the State of New York.

50. Plaintiff demands judgment against the defendants in a sum exceeding the jurisdictional limits of all courts lower than the Supreme Court of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION

51. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs " 1 " through "50" inclusive, with the same force and effect as though set forth fully at length herein.

52. That the acts of the defendants amounted to false arrest, wrongful imprisonment, assault, battery, use of excessive force and violation of due process and plaintiff's civil rights.

53. That the acts of the defendants negligently or intentionally inflicted and caused plaintiff to suffer emotional distress.

54. As a direct and proximate result of the misconduct detailed above, the plaintiff was caused to and did suffer serious personal injuries and, inter alia, humiliation, embarrassment, mental anguish and emotional distress, etc. causing him to become sick, sore, lame and disabled for a long period of time and he did suffer personal injuries to his mind and body, requiring him to obtain medical treatment for said injuries and as such, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of all Courts lower than the Supreme Court of the State of New York.

55. Plaintiff demands judgment against the defendants in a sum exceeding the jurisdictional limits of all courts lower than the Supreme Court of the State of New York.

AS AND FOR A FIFTH CAUSE OF ACTION

56. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "55" inclusive, with the same force and effect as though set forth fully at length herein.

57. At all times relevant herein, the conduct of defendants POLICE OFFICER SALASMARTINEZ and POLICE OFFICER BARCIA was subject to the United States Constitution and United States Laws including the provisions of 42 U.S.C. 1983, et seq., the Constitution of the State of New York, and the Charter of the City of New York as well as other laws of the United States and the state and city of New York.

58. That all times relevant herein, there existed a clearly recognized federal right pursuant to the Fourth and Fourteenth Amendments of the United States Constitution to be free from excessive force and the taking of life and liberty without due process and entitlement to equal protection under law.

59. The conduct and the actions of defendants, POLICE OFFICER SALASMARTINEZ and POLICE OFFICER BARCIA, in the use of excessive force and in taking away the liberty of plaintiff without cause, denied plaintiff due process and denial of equal protection under law and was done intentionally, maliciously, and/or with reckless disregard for the natural and probable consequences of their acts and was done without lawful justification and was designed to cause and did cause specific and serious physical, mental, and emotional harm, pain, and suffering in violation of the plaintiff's constitutional rights as guaranteed under 42 U.S.C. 1983 et seq., and the Fourth and Fourteenth Amendments to United States Constitution, the Constitution of the state of New York and the charter of the city of New York as well as other laws of the United States and the state and city of New York.

60. The wrongful arrest and false imprisonment of plaintiff by POLICE OFFICER SALASMARTINEZ and POLICE OFFICER BARCIA, the improper and false apprehension of plaintiff, the assault and battery of plaintiff and the removal of plaintiff from his motor vehicle and arrest and detention of plaintiff and other abuses, deprived plaintiff of the rights, remedies, privileges and immunities guaranteed by the First, Fourth and Fourteenth Amendments of the United States Constitution and laws of the United States in violation of 42 U.S.C. 1983, et seq., the Constitution of the state of New York, the charter of the city of New York as well as other laws of the United States and the state and city of New York.

61. That defendants, POLICE OFFICER SALASMARTINEZ and POLICE OFFICER BARCIA, acted willfully, knowingly and with the specific intent to deprive plaintiff of his

constitutional rights secured by the Fourth and Fourteenth Amendments of the United States Constitution and laws of the United States in violation of 42 U.S.C. 1983, et seq., the Constitution of the state of New York, the charter of the city of New York and other laws of the United States and the state and city of New York.

62. As a direct and proximate result of the misconduct detailed above, the plaintiff was caused to and did suffer serious personal injuries and, inter alia, humiliation, embarrassment, mental anguish and emotional distress, etc. causing him to become sick, sore, lame and disabled for a long period of time and he did suffer personal injuries to his mind and body, requiring him to obtain medical treatment for said injuries and as such, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of all Courts lower than the Supreme Court of the State of New York.

63. Plaintiff demands judgment against the defendants in a sum exceeding the jurisdictional limits of all courts lower than the Supreme Court of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION

64. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs " 1 " through "63" inclusive, with the same force and effect as though set forth fully at length herein.

65. Plaintiff was subjected to unreasonable search and seizure unsupported by probable cause or reasonable suspicion in violation of his civil rights under the 4th Amendment to the United States Constitution and the Civil Rights Act of 1871 and 42 U.S.C. 1983, et. seq.

66. As a direct and proximate result of the misconduct detailed above, the plaintiff was caused to and did suffer serious personal injuries and, inter alia, humiliation, embarrassment, mental anguish and emotional distress, etc. causing him to become sick, sore, lame and disabled for a long period of time and he did suffer personal injuries to his mind and body, requiring him to obtain medical treatment for said injuries and as such, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of all Courts lower than the Supreme Court of the State of New York.

67. Plaintiff demands judgment against the defendants in a sum exceeding the jurisdictional limits of all courts lower than the Supreme Court of the State of New York.

AS AND FOR A SEVENTH CAUSE OF ACTION

68. Plaintiff repeats, realleges and reiterates the allegations contained in paragraphs "1" through "67" inclusive, with the same force and effect as though set forth fully at length herein.

69. That THE CITY OF NEW YORK directly caused the constitutional violations suffered by plaintiff.

70. That in the assault, battery false arrest, wrongful imprisonment, etc. of plaintiff without probable cause, defendants, POLICE OFFICER SALASMARTINEZ and POLICE OFFICER BARCIA, violated plaintiff's civil right to be free of such actions under the Fourth and Fourteenth Amendments to the Constitution, the Civil Rights Act of 1871, 42 U.S.C. Section 1983, et. seq., and the laws and Constitution of the State and the laws and charter of the city of New York.

71. That the false arrest, wrongful imprisonment, assault and battery, violation of civil rights, etc. of plaintiff were without probable cause and committed by defendants, POLICE OFFICER SALASMARTINEZ, and POLICE OFFICER BARCIA, pursuant to customs, practices, policies and uses of defendant THE CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

72. That defendants, THE CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT, failed to effectively screen, hire, train, supervise and discipline their employees, including the defendant law enforcement personnel mentioned herein, with regard to their propensity for inter alia, reckless, careless and negligent conduct and for their failure to protect citizens from unconstitutional conduct of law enforcement personnel, thereby permitting and allowing the defendants herein to be in a position to excessively and unjustifiably restrain and/or deprive persons of liberty and religious freedom and/or to permit these actions to take place with their knowledge and consent and otherwise cause plaintiff injury in violation of their federal and state constitutional rights.

73. That under the customs, practices, policies and uses of defendant, THE CITY OF NEW YORK through THE NEW YORK POLICE DEPARTMENT, THE CITY OF NEW YORK:

- a) encouraged and/or condoned the abuse of police powers, use of excessive force and arrest and imprisonment without probable cause or warrant;
- b) encouraged and/or condoned the practice of using arrest and imprisonment without probable cause;

- c) failed to adequately screen, select, train, monitor and supervise applicants to THE NEW YORK POLICE DEPARTMENT;
- d) failed to monitor, investigate, supervise, discipline, punish, transfer, counsel and/or otherwise control police officers regarding the excessive use of force, the necessity for probable cause, the deprivation of liberty and indifference to the religious beliefs of persons, to abide by law, follow the law and not conspire to break or evade the law or deny civil rights or other Constitutional violations by its employees;
- e) failed to provide adequate training to its THE NEW YORK POLICE DEPARTMENT force regarding the use of force, excessive force, the necessity of probable cause, deprivation of liberty and indifference to the religious beliefs of persons, to abide by law, follow the law and not conspire to break or evade the law or deny civil rights or other Constitutional violations by its employees;
- f) allowed violation of the public trust and breach of fiduciary relationship to the public;
- g) encouraged and/or condoned the abuse of police powers, shot Taser gun and forcibly removed plaintiff from the motor vehicle;
- h) created an environment and culture in which members of THE NEW YORK POLICE DEPARTMENT were encouraged to conceal their misconduct and the misconduct of other members resulting in a situation in which members

of THE NEW YORK POLICE DEPARTMENT believed they could violate with impunity laws and the rights of persons such as plaintiff;

- i) authorized and ratified a "code of silence", commonly known as the "Blue Wall of Silence", wherein members of law enforcement regularly cover up police misconduct, including, but not limited to, the use of excessive and unjustified force and/or deliberate denial of religious freedom by telling false and incomplete stories, by destroying evidence, by fabricating evidence, by failing to report the use of excessive and unjustified force and/or a deliberate denial of religious freedom by members of law enforcement, by conspiring and participating in conspiracies to do same, inter alia, in reports, sworn testimony, official reports, public statements and otherwise, all of which are designed to cover for and/or falsely exonerated accused members of law enforcement.;
- j) authorized and ratified the deliberate destruction of evidence, fabrication of evidence, the subordination or attempts to suborn perjury and other illegal means to provide false and incomplete explanation of events which are designed to cover up and/or falsely exonerate accused members of law enforcement;
- k) allowed, condoned and encouraged testi-lying;
- l) allowed violation of the public trust and breach of fiduciary relationship to the public.

74. As a result of the foregoing conscious policies, practices, customs and/or usages, defendants, THE CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT, have permitted the employment and retention of individuals as law enforcement personnel whose individual circumstances place the public or segments thereof at substantial risk of being the victim of violent or otherwise constitutionally violative behavior. Such policies, practices, customs and/or usages are a direct and proximate cause of the conduct alleged herein and otherwise a direct and proximate cause of the injuries to plaintiff.

75. As a direct and proximate result of the misconduct detailed above, the plaintiff was caused to and did suffer serious personal injuries and, inter alia, humiliation, embarrassment, mental anguish and emotional distress, etc. causing him to become sick, sore, lame and disabled for a long period of time and he did suffer personal injuries to his mind and body, requiring him to obtain medical treatment for said injuries and as such, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of all Courts lower than the Supreme Court of the State of New York.

76. Plaintiff demands judgment against the defendants in a sum exceeding the jurisdictional limits of all courts lower than the Supreme Court of the State of New York.

CPLR Article 16 Allegations

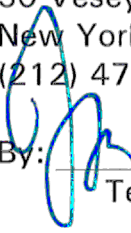
77. The limitation on liability set forth in CPLR § 1601 does not apply by reason of one or more of the exemptions set forth in CPLR § 1602.

WHEREFORE, plaintiff demands judgment against the defendants, in a sum in excess of the jurisdiction of the lower courts on each CAUSE OF ACTION together with the costs and disbursements of this action and attorney's fees.

Dated: New York, New York
February 26, 2019

Yours, etc.

THE LAW OFFICE OF TEDD KESSLER, P.C.
ATTORNEYS FOR PLAINTIFF
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 477-3200

By: 

Tedd Kessler, Esq.

VERIFICATION

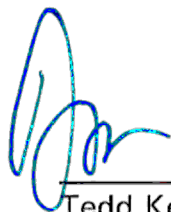
TEDD KESSLER, an attorney duly admitted to practice law in the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

That I am the attorney for the plaintiff in this action.

That I have read the foregoing **COMPLAINT** and know the contents thereof, and that the same is true to my knowledge except as to those matters stated to be alleged upon information and belief, and as to those matter I believe them to be true. That the sources of my information are investigation and records in the file. The reason that this verification is made by me and not by the plaintiff is that the plaintiff is not within the County where I maintain my office.

I affirm that the foregoing statements are true under the penalty of perjury.

Dated: New York, New York
February 26, 2019



Tedd Kessler, Esq.

Index #:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

CALVIN K. MORELAND,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK POLICE DEPARTMENT, POLICE OFFICER
SALASMARTINEZ and POLICE OFFICER BARCIA,

Defendants.

SUMMONS and VERIFIED COMPLAINT

THE LAW OFFICE OF TEDD KESSLER, P.C.

Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 477-3200

PLEASE TAKE NOTICE

NOTICE OF ENTRY

that the within is a (certified) true copy of a duly entered in the office of the
Clerk of the

within named Court on , 2019.

NOTICE OF

SETTLEMENT

that an of which the within is a true copy will be presented to the Hon. one
of the

of the within named Court, at , New York, on , 2019, at _____
A.M.

Dated: